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When Ruth Chepngetich annihilated the women's marathon world record in Chicago two years ago today, NBC's commentators compared it to the moon landing. "Bring it on Neil Armstrong!" cried one. "She has done things in this sport that we have not seen," said another. "Unbelievable!"

That was a word others reached for too after the Kenyan had crossed the line in 2hr 9min 56sec, a time that not only smashed the world record by 1min 57sec, but her personal best by a staggering five minutes. Afterwards she was asked by Robert Johnson of Let's Run what her response was to those who believed she must be doping. "People must talk," she replied. "I don't know."

We know a lot more now. Because five months after that epic run, Chepngetich's star came crashing down to earth. First she failed a doping test. Then she was banned for three years. These days people in the sport talk about her reluctantly, like a family member who has joined a mysterious cult. Yet her world record still stands because she passed a test after the race itself.

What should we think of this? What are we allowed legally to say about this? And what, if anything, can be done about it?

A couple of weeks ago, I spoke to Brett Clothier, the head of the Athletics Integrity Unit, which prosecuted the case against Chepngetich, to ask about her world record. "It is not satisfactory, to be frank," he admitted. "But the world anti-doping code is pretty clearcut on the rights athletes have, even if they're found guilty of a doping offence."

That much is true. But while legally Chepngetich was clean when she broke her world record, the fact it stands surely damages the sport's credibility.

True, there are plenty of highly suspicious records from the 80s and early 90s, given what we know about state-sponsored doping behind the iron curtain and in China. And if you believe Florence Griffith Joyner knocked more than half a second off her 100m and 200m times in 1988 by doing 5,000 sit-ups a day and drinking water, I have some magic beans to sell you.

Griffith Joyner, of course, never tested positive. But before her death aged 38, her fellow American sprinter Darrell Robinson claimed in a paid interview with the German magazine Stern that he had sold her human growth hormone for $2,000.

He also alleged that she had told him: "If you want to make a million dollars, you've got to invest a couple of thousand." Yet as much as Flo-Jo's records make us uneasy, they are seen as coming from a bygone and more lawless era.

Also, what makes Chepngetich unique is that no other athlete has been hit with a lengthy ban so soon after a world record.

The Kenyan's defence for being 20 times the legal limit of hydrochlorothiazide (HCTZ) in her system? That she had taken her housemaid's medication after feeling hot and having a rapid resting heartbeat. It was, the AIU noted, a "hardly credible" explanation.

The AIU also found screenshots on Chepngetich's phone about the banned drug testosterone and "messages related to unidentified third parties working on 'programs' possibly related to doping". The Kenyan has insisted that she has never used testosterone and the messages were from a group chat, but they hardly inspire confidence either.

So what can be done? The short answer, having spoken to the World Anti-Doping Agency (Wada), is very little. As a Wada spokesperson pointed out to me, removing her results before her positive test "in the absence of any evidence or reasonable inference that the athlete was doping before or at the time of the earlier results, might well breach a number of legal principles including proportionality and human rights."

But what about Lance Armstrong, who was stripped of his Tour de France titles despite not being convicted of breaking any doping rules while competing? Could this not apply here? Not according to Wada.

"He had procedural avenues open to him to contest the sanction but ultimately chose not to use them," a spokesperson told me. "That makes his case a relatively weak precedent for establishing how far retrospective disqualification could legally go."

One idea I floated to various experts was the idea that athletes could be asked to sign a social contract, which pledged they would accept losing their world record if they tested positive within a year of that world record or winning an Olympic medal.

In theory, one anti-doping expert put it to me, it was possible to do this. But he felt it would require everybody – from sports federations and governments to athlete bodies and human rights groups – to buy in and to agree to change the Wada code to allow retrospective punishments. And that is not going to happen.

At least track and field can point to many significant victories over doping in the last decade, given that Chepngetich is one of 317 elite Kenyan athletes the AIU has caught since it was set up in 2017. Many sports pay lip service to catching cheats. Athletics actually does. And the AIU does it on a modest budget of $11.9m (£9m) a year.

There are also positive signs that prominent athletes realise more must be done when it comes to anti-doping. Before Sabastian Sawe set his men's marathon world record in London, for instance, his sponsors, Adidas, paid $50,000 for extra testing. Nike did the same for two of their athletes, Jacob Kiplimo and Brigid Kosgei, before Chicago.

Sawe's agent, Eric Lilot, wants to go further by making his athletes sign a contract that will require

them to give up any money still owed to them if it is shown they intentionally tried to dope. All that points to brighter days ahead, however much Chepngetich's record makes us feel queasy.

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